

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Strauss	Team: Squad #6	CCRB Case #: 201906874	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/24/2019 4:45 PM	Location of Incident: In front of § 87(2)(b)	Precinct: 45	18 Mo. SOL 1/24/2021	EO SOL 9/10/2021	
Date/Time CV Reported Wed, 07/24/2019 9:41 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/05/2019 11:08 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. CPT Johnny Orellana	00000	920679	045 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Melvin Chittum	07373	941547	045 PCT
2. POM Junius Evans	26929	965075	045 PCT
3. POM Habner Sanchez	25434	963261	045 PCT
4. POM Danny Padilla	09352	965390	045 PCT
5. LT Charlie Abreu	00000	941309	045 PCT

Officer(s)	Allegation	Investigator Recommendation
A.CPT Johnny Orellana	Abuse: Captain Johnny Orellana threatened to arrest § 87(2)(b)	§ 87(2)(b)
B.CPT Johnny Orellana	Abuse: Captain Johnny Orellana refused to provide his name to § 87(2)(b)	§ 87(2)(b)
C.CPT Johnny Orellana	Abuse: Captain Johnny Orellana refused to provide his name to § 87(2)(b)	§ 87(2)(b)
D.CPT Johnny Orellana	Abuse: Captain Johnny Orellana seized § 87(2)(b) s property.	§ 87(2)(b)

Case Summary

On July 24, 2019, § 87(2)(b) filed this complaint over the phone with the Internal Affairs Bureau. On August 5, 2019, the CCRB received this complaint from IAB, under original log #19-28576. § 87(2)(b)'s husband, § 87(2)(b) was also present during the incident.

On July 24, 2019, at approximately 4:45 p.m., § 87(2)(b) was about to take his electric bike into the basement of his residence, located at § 87(2)(b) in the Bronx. Cpt. Johnny Orellana, of the 45th Precinct, approached § 87(2)(b) and asked for his license and registration. § 87(2)(b) was issued a summons for operating a motorized scooter within NYC (BR 01). Cpt. Orellana told § 87(2)(b) that his bike was being seized and that if he touched or moved the bike, he would be arrested (**Allegation A: Abuse of Authority**, § 87(2)(g) § 87(2)(b) and § 87(2)(b) asked Cpt. Orellana for his name, which he allegedly did not provide (**Allegations B and C: Abuse of Authority**, § 87(2)(g) Cpt. Orellana authorized officers from 45th Precinct that responded to § 87(2)(b)'s e-bike (**Allegation D: Abuse of Authority**, § 87(2)(g) No additional summonses or arrests resulted from this incident.

Body-worn camera footage recorded by PO Melvin Chittum, PO Junius Evans, and PO Habner Sanchez was obtained (BR 02-04). § 87(2)(b) provided two cell phone videos taken during the incident (BR 05-06) and surveillance footage from § 87(2)(b) captured a portion of this incident (BR 07-09).

Findings and Recommendations

Allegation (A) Abuse of Authority: Captain Johnny Orellana threatened to arrest § 87(2)(b).

Allegation (D) Abuse of Authority: Captain Johnny Orellana seized § 87(2)(b)'s property.

It is undisputed that Cpt. Orellana told § 87(2)(b) that he could be arrested and that § 87(2)(b)'s e-bike was seized.

§ 87(2)(b) testified (BR 10) that when he arrived at his residence, he parked his e-bike on the sidewalk in front of § 87(2)(b) and went downstairs to get a ramp to take the bike into the basement. The e-bike is a black and red Jiesheng Sport 666 that rides up to 40 miles per hour, looks like a motorcycle, and runs solely on electricity. When he came upstairs, Cpt. Orellana asked for § 87(2)(b)'s license and stated that the bike did not belong on the sidewalk. § 87(2)(b) § 87(2)(b) who came outside shortly thereafter, and Cpt. Orellana went back and forth regarding the legality of the e-bike. PO Chittum, who had been given § 87(2)(b)'s license by Cpt. Orellana, then approached and issued a summons to § 87(2)(b). Cpt. Orellana told § 87(2)(b) that he was going to confiscate his bike and that if he touched the bike or stopped the officers from taking the bike, he would be arrested. Additional officers, identified by the investigation as PO Evans, PO Sanchez, PO Danny Padilla, and Lt. Charlie Abreu, arrived and loaded the e-bike into a police van.

§ 87(2)(b)'s testimony and § 87(2)(b)'s, a neighbor who witnessed the incident, phone statement (BR 11-12) were generally consistent with § 87(2)(b)'s testimony.

In a cell phone video captured by § 87(2)(b) and § 87(2)(b) (BR 05), at the 01:36 mark in the video player, § 87(2)(b) explained that he rode his bike in the street and not on the sidewalk. Cpt. Orellana asked if § 87(2)(b) acknowledged that he rode the bike, which § 87(2)(b) confirmed. At the 02:31 mark, Cpt. Orellana asked for § 87(2)(b)'s paperwork for the bike. § 87(2)(b) stated that there was no registration and provided proof of ownership to Cpt. Orellana.

In PO Chittum's BWC footage (BR 02), at the 23:03 mark in the video player, Cpt. Orellana stated that the bike was being seized. Cpt. Orellana touched the e-bike's handlebar and § 87(2)(b) placed his left hand on the front of the bike. At the 23:12 mark, Cpt. Orellana told § 87(2)(b) to step back and that he would be arrested. At the 25:41 mark, Cpt. Orellana stated that if § 87(2)(b) interfered when the bike was mounted onto the police van, he would be arrested. At the 29:09 mark, PO Chittum stated that when he was parked on § 87(2)(b) and § 87(2)(b) earlier, he saw § 87(2)(b) riding the e-bike on § 87(2)(b), though PO Chittum did not stop him at the time. § 87(2)(b) did not dispute this statement and explained that he did not ride his e-bike against traffic or on the sidewalk.

§ 87(2)(g)

§ 87(2)(g)

No person shall operate a motorized scooter, defined as any wheeled device powered by an electric motor that is capable of propelling the device without human power, in NYC. Any motorized scooter used in violation of this statute may be impounded. NYC Administrative Code § 19-176.2 (BR 14). Pursuant to NYC Administrative Code § 19-176.2, an OATH summons should be issued to the operator of a prohibited e-bike and it should be seized and vouchered as per department policy. NYPD Patrol Guide, Procedure 209-37 (BR 15). A person is guilty of obstructing governmental administration when he or she intentionally obstructs, impairs, or perverts the administration of law or other governmental function or attempts to prevent a public servant from performing an official function. NY Penal Law § 195.05 (BR 16).

§ 87(2)(g)

§ 87(2)(g)

Allegation (B) Abuse of Authority: Captain Johnny Orellana refused to provide his name to

§ 87(2)(b)

Allegation (C) Abuse of Authority: Captain Johnny Orellana refused to provide his name to

§ 87(2)(b)

§ 87(2)(b) and § 87(2)(b) testified that they both asked Cpt. Orellana for his name and shield number, which he refused to provide. § 87(2)(g)

Cell phone video and BWC footage captured the portion of the incident where the request for Cpt. Orellana's identifying information was alleged to have occurred. In PO Chittum's BWC footage

(BR 02), at the 27:50 mark in the video player, § 87(2)(b) asked Cpt. Orellana for his shield number and he did not reply. Neither § 87(2)(b) nor § 87(2)(b) asked Cpt. Orellana for his name.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 17).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 18).
- Cpt. Orellana has been a member of service for 22 years and has been a subject in 14 CCRB complaint and 30 allegations, of which one was substantiated.
 - 201211468 involved a substantiated allegation of offensive language (gender). The Board recommended Charges and the NYPD did not impose discipline.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) and § 87(2)(b) declined to mediate this complaint.
- As of January 24, 2020, the NYC Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date